

		and confer in person or by telephone/videoconference before filing the motion. (Code Civ. Proc. §§ 2016.040, 2033.080(a).) The motion is therefore continued to allow the parties to comply with section 2016.040. Moving Defendants shall file and serve a three-page supplemental declaration, describing their compliance with this order and the status of the dispute, no later than nine court days before the continued hearing date. Plaintiff shall do the same no later than five court days before the hearing date. The Court expects the parties to work cooperatively to resolve discovery disputes. The Court is not inclined to award sanctions to either side in this matter because neither side has diligently attempted to resolve the dispute by proposing a reasonable compromise. However, if either side fails to diligently meet and confer, the Court may impose sanctions against that party or their counsel. Inability to resolve routine discovery disputes without Court intervention may result in the Court appointing a discovery referee at the parties' expense pursuant to Code of Civil Procedure section 639.
5.	QUERIDO VS. TEACHER 2022-01243394	MOTION TO TAX COSTS Defendant Theodore Michael Teacher's Motion to Tax Costs is GRANTED in part and DENIED in part as set forth below. Plaintiff's memorandum of costs is taxed in the amount of \$11,158.08. <u>Legal Standard</u> Code of Civil Procedure section 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure section 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. (Code Civ. Proc. § 1033.5(a), (b).) An item not specifically allowable under subdivision (a) or specifically prohibited under subdivision (b) may nevertheless be recoverable in the court's discretion if "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(2).) "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them

as costs. (*Ibid.*) But conclusory assertions alone are not enough to cause this shift to happen. “[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.)

Depositions

The Court finds numerous additional fees which do not appear to be reasonably necessary and included to inflate the costs of depositions. Specifically, fees for transcript quality control and processing; electronic delivery, handling, and archive; production and shipping of original transcript; code compliance letter; transcript teleconference per page surcharge; transcript video surcharge; deposummary; and extra exhibit copies. Thus those fees are taxed.

The Court finds the expedition fees were reasonably necessary as to many depositions because they were completed near the time of trial on several occasions. However, Jonathan Eskenazi, MD’s second deposition includes such a fee, however, there was no impending trial at the time. Thus, that fees is taxed.

Accordingly, the Court taxes \$5,828.33 from the claimed deposition costs.

Service of Process

In reply Defendant withdraws his request to tax the service of process fees.

Witness Fees

Plaintiff seeks to claim costs for collecting Plaintiff’s medical records. Plaintiff admits they are not witness fees but claims they are still recoverable because a defendant is permitted to recover fees for deposition subpoenas for business records only. (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 578.) However, a plaintiff can request their own medical records without resorting to a subpoena. Thus, these costs were merely convenient and not reasonable. Therefore, the Court taxes \$2,476.07 from claimed witness fees.

Court Reporter Fees

Defendant claims the court reporter fees do not reflect the 50/50 split agreed to by the parties. Defendant has failed to submit sufficient evidence to show the court reporter fees claimed are the entire fees rather than the agreed upon split fees. The invoices even note the fees were agreed to be split and note the quantity as 0.5

		rather than 1. Thus, Defendant’s request to tax the court reporter fees is denied. <u>Models, Enlargements, and Photocopies of Exhibits</u> The two trial binders for counsel were reasonably helpful to aid the trier of fact by allowing counsel to conduct its case in an organized fashion. Thus, the Court taxes the \$339.72 withdraw in opposition and denies any other request to tax. <u>Other</u> Plaintiff’s messenger fees to transport exhibits to and from the courthouse are merely convenient rather than reasonably necessary to the conduct of litigation. Thus, the Court taxes \$624.50 for the claimed messenger fees. Plaintiff’s observer at the defense medical examination observer is reasonably necessary to allow Plaintiff to properly defend the findings of the examination. Thus, the Court denies the request to tax this cost. The Court taxes the \$556.56 for a charge “CVB (AMEX) – Fairmont Breakers, Long Beach CA – C. Bulone — trial-related lodging.” There is no other explanation for the charge and trial was not conducted in Long Beach. Finally, Defendant seeks to tax half of the \$12,161.25 for the trial technological support services. Defendant claims the parties agreed to split the costs and Plaintiff has not submitted evidence the invoice only reflects half of the costs. “[T]he losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) Defendant fails to demonstrate the claimed costs are the entire cost of the services. Thus, the Court denies the request to tax this cost.
7.	REVNUE CORP. VS. CORTEZ 2025-01531657	DEMURRER TO COMPLAINT Defendants John Cortez; Think Scale, LLC; and Bundee Technologies, Inc.; and Cindy Wu’s Demurrer to the Complaint is OVERRULED in part as to the 1st-3rd causes of action and SUSTAINED in part as to the 4th cause of action. Defendants’ request for judicial notice is granted. The Court exercises its discretion to consider the untimely reply. The rule of exclusive concurrent jurisdiction applies where two or more actions involve the same subject matter and the court in the first action has the power to grant complete relief. (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 788-789.)